

Mahendra Singh vs Smt. Rekha & Anr on 1 February, 2017

Author: Sangeet Lodha

Bench: Sangeet Lodha

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B.Civil Writ Petition No. 729 / 2017

Mahendra Singh s/o Shri Chelaram, by caste-Seervi, aged-27
years, resident of Bera Bhanwariya, Bilara, District-Jodhpur
(Rajasthan).

---Petitioner

Versus

1. Smt. Rekha w/o Mahendra Singh, D/o Shri Mishrilal, by
caste-Seervi, resident of Sabera Dano Baa Ki Dhimlee,
Udaliyawas, Tehsil-Bilara, District-Jodhpur (Raj.).
2. Urmila D/o Mahendra Singh, aged about 5 years, minor
through her natural guardian and mother respondent No.1 Smt.
Rekha W/o Mahendra Singh, D/o Shri Mishrilal, by caste-Seervi,
resident of Sabera Dano Baa Ki Dhimlee, Udaliyawas, Tehsil-Bilara,
District-Jodhpur (Raj.).

----Respondents

For Petitioner(s) : Mr. Mukhtar Khan

HON'BLE MR. JUSTICE SANGEET LODHA

Order 01/02/2017

1. This writ petition is directed against order dated 21.12.16 passed by the Family Court No.1, Jodhpur, whereby an application preferred by the respondent u/s 24 of the Hindu Marriage Act, 1955 (in short "the Act of 1955") has been allowed and the petitioner has been directed to pay a sum of Rs.5,000/- per month as maintenance pendente lite to the respondent for herself and Rs.2,500/- for her minor daughter. The petitioner has been further directed to pay the litigation expenses a sum of Rs.3,000/- and Rs.200/- as travelling expenses for each date of hearing.

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2. Learned counsel for the petitioner contended that the respondent has deserted the petitioner without any justifiable reason and therefore, she is not entitled for any maintenance. Learned counsel submitted that the Family Court has altogether ignored the fact that the court of Additional Chief Judicial Magistrate, Bilara has already passed an order under the provisions of Protection of Women from Domestic Violence Act, 2005 (for short "the Act of 2005") directing the petitioner to pay a sum of Rs.5,000/- per month to the respondent. Learned counsel submitted that before

determining the amount of maintenance payable to the respondent, the Family Court was under an obligation to find out after objective consideration of the material on record, as to how much is the income of the petitioner. Learned counsel submitted that without determining the petitioner's income objectively, the order impugned passed by the court below awarding interim maintenance in favour of the respondent is not sustainable in the eyes of law.

3. I have considered the submissions of the learned counsel for the petitioner and perused the material on record.

4. As per the mandate of the provisions of Section 24, where the wife or husband, as the case may be, has no income sufficient for her or his support and the necessary expenses of the persons, the court is under an obligation to award to reasonable interim maintenance and litigation expenses having regard to the petitioner's own income and the income of the respondent.

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5. Indisputably, the purpose behind Section 24 of the Act of 1955 is to provide necessary financial assistance to the party to the matrimonial dispute who has no sufficient means to maintain himself/herself or to bear the expenses of the proceedings. While considering the application for award of interim maintenance, the relevant consideration is the inability of the spouse to maintain himself or herself for want of independent income or inadequacy of the income to maintain at the level of social status of other spouse. No hard and fast rule can be laid down for determination of the amount of interim maintenance.

6. It has come on the record that the petitioner is carrying on business at Surat and has also income from agriculture. The monthly income of the petitioner is disclosed to be Rs.90,000/- per month. There is no material on record to show that the respondent has her own source of income. Thus, on overall consideration of the matter, in considered opinion of this court, the interim maintenance a sum of Rs.7,500/- per month determined by the Family Court for the respondent and her minor child is just and reasonable and cannot be said to be excessive.

7. The contention raised by the petitioner that Family Court has ignored the factum of maintenance awarded to the respondent by the court of Additional Chief Judicial Magistrate, Bilara under the Act of 2005, is absolutely incorrect inasmuch as, while passing the order as aforesaid granting maintenance pendente lite, the Family Court has specifically ordered that the amount of maintenance awarded to the respondent in the proceedings under the Act of 2005 shall be adjusted against the amount of maintenance (4 of 4) [CW-729/2017] awarded to the respondent under Section 24 of the Hindu Marriage Act, 1955.

8. For the aforementioned reasons, no interference is called for by this court in exercise of its supervisory jurisdiction under Article 227 of the Constitution of India.

9. In the result, the writ petition fails, it is hereby dismissed in limine.

(SANGEET LODHA),J.

Aditya/-